

Rules of the Rural Institute (Birauli) Society

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State of Jharkhand - Act

Rules of the Rural Institute (Birauli) Society

JHARKHAND

India

Rules of the Rural Institute (Birauli) Society

Rule RULES-OF-THE-RURAL-INSTITUTE-BIRAULI-SOCIETY of 1800

Published on 1 January 1800

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Rules of the Rural Institute (Birauli) Society

1.

Short Title.

- These Rules may be called "Rules of the Rural Institute (Birauli) Society".

2.

Definitions.

- In these Rules unless the context otherwise requires;

(i)

The "Society" shall mean the Rural Institute (Birauli) Society;

(ii)

The "Director" shall mean the Director of the Rural Institute, Birauli;

(iii)

The "Governing Body" shall mean the body which is constituted as such under Rule 18 as the Governing Body of the Society;

(iv)

The "Officers and staff of the Institute" shall mean every officer mentioned in Rules 9 and 10 and every officer and member of the staff appointed by the Governing Body for the Institute;

(v)

The "Secretary" shall mean the Secretary of the Rural Institute (Birauli) Society;

(vi)

The "Institute" shall mean the Rural Institute Birauli;

(vii)

(a)

Words importing the singular number also include the plural number and vice-versa;

(b)

Words importing the masculine gender also include the feminine gender,

3.

Members of the Society.

- The Society shall consist of the following members:-

(1)

Minister for Education shall be the Chairman of the Society,
Ex-officio

(2)

Development Commissioner, Bihar

"

(3)

Commissioner, Tirhut Division, Muzaffarpur,

"

(4)

Secretary to Government of Bihar, Finance Department.
Ex-officio

(5)

Secretary to Government of Bihar, Agriculture Department,
"

(6)

Secretary to Government of Bihar, Education Department,
"

(7)

Secretary to Government. Industries Department of Bihar.
"

(8)

A nominee of the Government of Bihar.
"

(9)

A nominee of the Government of Bihar.
"

(10)

A nominee of the Government of Bihar.
"

(11)

Director, Rural Institute for Higher Studies, Birauli.
"

4.

Duration of membership.

- The member of the Society, nominated under items (7) to (10) of Rule 3, shall hold office for a period of three years, provided that a member on the expiry of his/her term of office, shall be eligible for re-nomination.

5.

Member of the Society, other than ex-officio members, shall cease to be such members if -

(a)

they die, resign, become of unsound mind, become insolvent or be convicted of a criminal offence involving moral turpitude; or

(b)

they do not attend three consecutive meetings of the Society without proper leave of the Chairman, or Vice-Chairman.

6.

A resignation of membership of the Society shall be tendered to the Secretary, and shall not take effect until it has been accepted on behalf of the Society by the Chairman.

7.

Vacancies.

- Any vacancy in the membership of the Society caused by any of the reasons mentioned above shall be filled up by nomination by the authorities entitled to make such nomination, and the persons appointed in the vacancy shall hold office only for the unexpired period of the term of the membership.

8.

The Society shall function notwithstanding that any person, who is entitled to be a member by reason of his office, is not a member of the Society for the time being and notwithstanding any other vacancy in its body, whether by the non-appointment or otherwise, and no act or proceeding of the Society, shall be, invalidated merely by the reason of the happening of any of the above events or of the any defect in the appointment of any of its members.

Officers and Authorities of the Society

9.

Officers.

- The Officers of the Society shall be the Chairman, the Secretary and such other persons as may be designated as such by the Governing Body.

10.

The Director, Rural Institute, Birauli, who shall also be the Secretary of the Society shall be appointed by the Governing Body on recommendation of the Government of Bihar and with the approval of the National Council of Rural Higher Education.

11.

Authorities.

- The following shall be the authorities of the Society:-

(1)

The Governing Body; and

(2)

such other authorities as may be constituted by the Governing Body.

Proceedings of the Society

12.

Meetings.

(a)

The Chairman shall have power to convene meetings of the Society at any time when he considers it necessary.

(b)

The Governing Body shall meet at least twice a year on such dates and at such places as shall be decided by the Chairman.

13.

All meetings of the Society shall be called by notice under the signature of the Secretary.

14.

Every notice calling a meeting of the Society shall state the date, time and place at which such meeting will be held and shall be served upon every member of the Society not less than twenty-one clear days before the day appointed for the meeting.

15.

If the Chairman is not present at the meeting, the members present shall elect any of themselves to preside at the meeting.

16.

(1)

All disputed questions at the meetings of the Society shall be determined by vote.

(2)

In case of an equality of votes, the Chairman shall have a casting vote.

17.

The Secretary shall keep a record of the proceedings of the Society.

Governing Body

18.

The Society, as constituted in Rule 3, shall be the Governing Body of the Society.

Powers of the Chairman

19.

The Society, may by Resolution, delegate to the Chairman such of its powers for the conduct of business as it may deem fit, subject to the conditions that the action taken by the Chairman under the powers delegated under this Rule, shall be reported for confirmation at the next meeting of the Governing Body.

20.

In an emergency, which, in the opinion of the Chairman requires that immediate action should be taken, the Chairman shall take such action as he deems necessary but he shall report his action to the Society at its next meeting,

Functions and Powers of Secretary

21.

The Secretary, shall subject to any order that may be passed by the Society, be the Principal Executive Officer of the Society and shall be responsible for the proper administration of the affairs of the Society and the Institute, under the direction and guidance of the Chairman:

Provided that the Secretary may, with the approval of the Society, delegate any of his powers and functions to any other officer, or authority appointed, or established under these Rules.

22.

The Secretary shall prescribe, the duties of all officers and staff of the Society and shall exercise such supervision and disciplinary control, as may be, necessary.

Funds of the Society

23.

The funds of the Society will consist of the following :-

(1)

Grants made by the Government of India and Government of Bihar, for the furtherance of the objects of the Society;

(2)

Contribution from other sources;

(3)

Income from the assets of the Society;

(4)

Receipts of the Society from other sources.

24.

The Bankers of the Society shall be the State Bank of India. All funds shall be paid into the Society's account with the State Bank of India and shall not be withdrawn except through a cheque signed by the Secretary, or such other officers as may be, duly empowered in this behalf by the Chairman.

Accounts and Audit

25.

(1)

The Society shall maintain proper accounts and other relevant records and prepare an annual statement of accounts including the balance sheet in such form as may be prescribed by the Government of Bihar.

(2)

The accounts of the Institute, shall be audited by the auditors of the Finance Department and any expenditure incurred in this connection shall be payable by the Society.

(3)

The Accountant-General, shall have the same right, privileges and authority in connection with the audit of accounts of the Institute, as the Accountant-General has in connection with the audit of Government accounts and, in particular, shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers, and to inspect the office of the Institute.

(4)

The accounts of the Society, as certified by the auditors of the Finance Department, together with the audit report thereon, shall be forwarded annually to the Government of Bihar and also to the Government of India.

Annual Report

26.

An Annual Report of the proceedings of the Society and of work undertaken during the year shall be prepared by the Secretary for the information of the Government of India and the Government of Bihar and all the members of the Society. A draft of the annual report and yearly accounts of the Institute, shall be placed before the Society, in one of its meetings for consideration and approval.

Amendment of Rules

27.

Subject, to the provisions of the Societies Registration Act (Act XXI of 1860), the Society may alter or extend the purposes, for which it is established, with the previous concurrence of the Government of India, and the Government of Bihar.

28.

The Rules of the Society, may be altered by the Society, at any time, with the sanction of the Government of India and the Government of Bihar.

29.

The sanction of the Government of India and the Government of Bihar, shall be obtained before the Rules and Regulation of the Society, or any amendment, to them is brought into force.

We, the following members of the Society, certify that the above is a corrected copy of the Rules of the Society.

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